

CHAPTER 36.

An Act to renew section two of the Juries (Emergency Provisions) Act, 1920. A.D. 1921.

[17th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Section two of the Juries (Emergency Provisions) Act, 1920 (which makes provision as to the preparation of jury lists for the year nineteen hundred and twenty-one in certain cities, boroughs and towns), shall have effect for the purpose of the preparation of jury lists for the year nineteen hundred and twenty-two in the cities, boroughs, and towns to which that section relates as it had effect for the purpose of the preparation of jury lists for the year nineteen hundred and twenty-one, as if the words “ nineteen hundred and twenty-two, not later than the first day of December, nineteen hundred and twenty-one ” were therein substituted for the words “ nineteen hundred and twenty-one, forthwith after the passing of this Act.” Renewal of s. 2 of 10 & 11 Geo. 5. c. 78.

2. This Act may be cited as the Juries (Emergency Provisions) (Renewal) Act, 1921. Short title.

CHAPTER 37.

An Act to provide for the application of new designations to the territorial force and the special reserve, and to repeal enactments relating to the militia and yeomanry; and for purposes in connection therewith.

[17th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The territorial force which His Majesty is empowered to raise and maintain under Part II. of the New designation for

A.D. 1921. Territorial and Reserve Forces Act, 1907, shall be called
the territorial force. the territorial army, and accordingly that Act and any
7 Edw.7. c.9. other enactment, Royal warrant, proclamation, order,
regulation, or document applying to the territorial force
shall have effect as though references therein to the
territorial army were substituted for references to the
territorial force.

New design-
ation for
the special
reserve.

2. That portion of the army reserve which has
hitherto been known as "the special reserve" shall
be called "the militia," and accordingly sections thirty
to thirty-three of the Territorial and Reserve Forces
Act, 1907, and any other enactment, Royal warrant,
proclamation, order, regulation, or document applying to
the special reserve shall have effect as though references
therein to the militia were substituted for references
therein to the special reserve, and as though references
therein to a militiaman and to militiamen were substituted
for references therein to a special reservist and to special
reservists.

Amendments
of the Army
Act.

3. The sections of the Army Act specified in the
First Schedule to this Act shall be amended in the
manner shown in the second column of that schedule.

Abolition of
existing
militia and
yeomanry.

4.—(1) The power to raise and maintain a militia
force or a yeomanry force under any of the enactments
set out in the Second Schedule to this Act shall cease,
and those enactments shall be repealed to the extent
specified in the third column of that schedule:

Provided that, notwithstanding anything in this sec-
tion, any enactment repealed by this Act which relates to
militia storehouses shall continue to apply in relation to
militia storehouses provided before the commencement
of this Act, as though this Act had not been passed.

(2) In this section the expression "militia store-
houses" means any buildings or premises provided for
the purpose of keeping therein the arms, accoutrements,
clothing, and other stores belonging to any regiment,
battalion or corps of militia, when not embodied.

Short title
and com-
mencement.

5.—(1) This Act may be cited as the Territorial
Army and Militia Act, 1921.

(2) This Act shall come into operation on the first
day of October, nineteen hundred and twenty-one.

SCHEDULES.

FIRST SCHEDULE.

Section 3.

AMENDMENTS OF THE ARMY ACT.

Section.	How to be amended.
13 (1) (a) -	For "the militia or territorial force when embodied " or the yeomanry when called out for actual " military service " there shall be substituted " the " territorial army when embodied."
(b) -	For "the militia or territorial force " there shall be substituted "the territorial army."
92 (3) - -	For "special reservist " there shall be substituted "militiaman."
108A (1) - - -	For "territorial force " there shall be substituted "territorial army."
115 (7) and (8)	The words "or an order for the embodiment of the militia " shall be omitted from both subsections.
175 (3) - - -	The subsection shall be omitted.
(3A) - - -	For "territorial force," wherever those words occur, there shall be substituted "territorial army".
(5) - - -	The words "officers of the yeomanry and " shall be omitted.
(6) - - -	The words "yeomanry or " shall be omitted.
(10) - - -	For "special reserve " there shall be substituted "militia".
176 (5) - - -	The words "or the militia reserve force " shall be omitted.
(6) - - -	The subsection shall be omitted.
(6A) - - -	For "territorial force " there shall be substituted "territorial army".
(7) - - -	The subsection shall be omitted.
(8) - - -	The words "or with any portion of the militia when subject to military law " shall be omitted.
181 (4) - - -	The following subsection shall be substituted for subsection (4) :— " (4) An order issued and signed as a route " or an order signed by the officer commanding " the unit of the territorial army, or the battalion " or corps of volunteers, shall be substituted for " a route— " (a) In the case of any man of the " territorial army attending for his pre- " liminary training ; and

Section.	How to be amended.
	“(b) In the case of any officer, non-commissioned officer, or man of the territorial army, assembled for training and exercise at the place in the United Kingdom appointed by His Majesty in that behalf; and “(c) In the case of any officer, non-commissioned officer, or man of the territorial army, embodied under an order of His Majesty, who has joined his corps at the place appointed for his assembling; and “(d) In the case of any officer, non-commissioned officer, or man of the volunteers attending at the place at which his corps is required to assemble; “and an order to billet such officer, non-commissioned officer, or man purporting to be signed in manner required by this Act in the case of a route, or by the officer commanding a unit of the territorial army, or a battalion or corps of volunteers, as the case may be, shall be evidence, until the contrary is proved, of the order being issued in accordance with this Act, and when delivered to an officer, non-commissioned officer, or man of the territorial army or volunteers shall be a sufficient authority to such officer, non-commissioned officer, or man to demand billets; and when produced by an officer, non-commissioned officer, or man to a constable shall be conclusive evidence to such constable of the authority of the officer, non-commissioned officer, or man producing the same to demand billets in accordance with the order.”
181 (6) -	For “territorial force” there shall be substituted “territorial army”.
190 (9) -	For “and the militia reserve force” there shall be substituted “including the militia”.
(12) -	For “territorial force” there shall be substituted “territorial army”, and the words “the militia, the yeomanry” shall be omitted.
(13) -	The subsection shall be omitted.

SECOND SCHEDULE.

Section 4.

ENACTMENTS REPEALED.

Reign and Chapter.	Title or Short Title.	Extent of Repeal.
14 Car. 2. c. 3.	An Act for ordering the forces in the several counties of the Kingdom.	The whole Act, except so much of section one as confers power on His Majesty to issue forth commissions of lieutenancy in respect of the City of London, and so much of section twenty-six as provides for the imposition and levying of a rate in the City of London.
15 Car. 2. c. 4.	An additional Act for the better ordering the forces in the several counties of this Kingdom.	The whole Act.
19 Geo. 3. c. 44.	The Nonconformist Relief Act, 1779.	In section one, the words “ from serving in the “ Militia of this “ Kingdom, and shall “ also be exempted.”
37 Geo. 3. c. 25.	The Militia (Tower Hamlets) Act, 1796.	The whole Act.
42 Geo. 3. c. 68.	The Yeomanry (Ireland) Act, 1802.	The whole Act.
42 Geo. 3. c. 72.	The Militia Stannaries Act, 1802.	The whole Act.
42 Geo. 3. c. 90.	The Militia Act, 1802 - -	The whole Act, except so much of section eighteen as prescribes the appointment of clerks to general meetings.
42 Geo. 3. c. 91.	The Militia (Scotland) Act, 1802.	The whole Act, except so much of section thirteen as prescribes the appointment of clerks to general meetings.
43 Geo. 3. c. 10.	The Militia (Exemption of Religious Teachers) Act, 1802.	The whole Act.

Reign and Chapter.	Title or Short Title.	Extent of Repeal.
43 Geo. 3. c. 50.	The Militia Act, 1803 - -	The whole Act.
43 Geo. 3. c. 89.	The Militia (Scotland) Act, 1803.	Section twenty-one.
43 Geo. 3. c. 100.	The Militia (Scotland) (No. 2) Act, 1803.	The whole Act.
44 Geo. 3. c. 54.	The Yeomanry Act, 1804 -	The whole Act.
44 Geo. 3. c. 94.	The Yeomanry Accounts Act, 1804.	The whole Act.
49 Geo. 3. c. 120.	The Militia (Ireland) Act, 1809	The whole Act, except so much of section seventy-four as prescribes the appointment of clerks to general meetings.
52 Geo. 3. c. 38.	The Local Militia (England) Act, 1812.	The whole Act.
52 Geo. 3. c. 68.	The Local Militia (Scotland) Act, 1812.	The whole Act.
52 Geo. 3. c. 105.	The Militia Returns Act, 1812.	The whole Act.
52 Geo. 3. c. 116.	The Local Militia (Exemption) Act, 1812.	The whole Act.
52 Geo. 3. c. 155.	The Places of Religious Worship Act, 1812.	Section nine.
53 Geo. 3. c. 28.	The Local Militia (England) Act, 1813.	The whole Act.
53 Geo. 3. c. 29.	The Local Militia (Scotland) Act, 1813.	The whole Act.
53 Geo. 3. c. 48.	The Local Militia (Ireland) Act, 1813.	Section two.
55 Geo. 3. c. 65.	The Militia (Medical Examination) Act, 1815.	Section eight.
56 Geo. 3. c. 39.	The Yeomanry (Training) Act, 1816.	The whole Act.

Reign and • Chapter.	Title or Short Title.	Extent of Repeal.
57 Geo. 3. c. 44.	The Yeomanry Act, 1817 -	The whole Act.
1 Geo. 4. c. 100.	The Militia (City of London) Act, 1820.	The whole Act, except sections thirty-four to forty, forty five and forty-eight.
7 Geo. 4. c. 58.	The Yeomanry Act, 1826 -	The whole Act.
2 & 3 Vict. c. 93.	The County Police Act, 1839 -	In section ten, the words “or in the militia”.
3 & 4 Vict. c. 84.	The Metropolitan Police Courts Act, 1840.	Section ten.
5 & 6 Vict. c. 55.	The Railway Regulation Act, 1842.	In section twenty, the word “militia.”
7 & 8 Vict. c. 85.	The Railway Regulation Act, 1844.	In section twelve, the words “militia or” in both places where those words occur.
15 & 16 Vict. c. 50.	The Militia Act, 1852 - -	The whole Act.
16 & 17 Vict. c. 73.	The Naval Volunteers Act, 1853.	In section eight, the words “from service in the militia and”.
17 & 18 Vict. c. 105.	The Militia Law (Amendment) Act, 1854.	The whole Act.
17 & 18 Vict. c. 106.	The Militia (Scotland) Act, 1854.	The whole Act.
17 & 18 Vict. c. 107.	The Militia (Ireland) Act, 1854.	The whole Act.
18 & 19 Vict. c. 57.	The Militia Act, 1855 - -	The whole Act.
20 & 21 Vict. c. 11.	The Militia (Ireland) Act, 1857.	The whole Act.
21 & 22 Vict. c. 90.	The Medical Act, 1858 - -	In section thirty-five, the words “and from “serving in the “militia” and “in the militia, or”.

Reign and Chapter.	Title or Short Title.	Extent of Repeal. •
22 & 23 Vict. c. 40.	The Royal Naval Reserve (Volunteer) Act, 1859.	In section seven, the words "from service in the militia and".
23 & 24 Vict. c. 94.	The Militia (Storehouses) Act, 1860.	The whole Act.
23 & 24 Vict. c. 120.	The Militia (Ballot) Act, 1860	The whole Act.
25 & 26 Vict. c. 4.	The Officers Commissions Act, 1862.	In section one, the words "Militia and".
26 & 27 Vict. c. 65.	The Volunteer Act, 1863 -	In section five, the words "and Militia" and "and shall rank " with officers of the " Yeomanry Force " according to the " rank and date of " their respective " commissions in the " respective forces "; in section eight, the words " enrolls him- " self as a volunteer " or substitute in " the Militia, or is " attested to serve " on the permanent " staff thereof or "; section forty-one ; and part (iv) of the Schedule.
28 & 29 Vict. c. 46.	The Militia (Ballot Suspension) Act, 1865.	The whole Act.
32 & 33 Vict. c. 80.	The Militia (Ireland) Act, 1869.	The whole Act.
33 & 34 Vict. c. 67.	The Reserve Forces Act, 1870.	Section twenty.
33 & 34 Vict. c. 77.	The Juries Act, 1870 - -	In the Schedule, the words " militia and yeomanry."
33 & 34 Vict. c. 96.	The Appropriation Act, 1870 -	In section six, the words " militia, yeomanry."

Reign and Chapter.	Title or Short Title.	Extent of Repeal.
34 & 35 Vict. c. 86.	The Regulation of the Forces Act, 1871.	In section six, the words "militia, yeomanry, and" wherever those words occur, and the words "militia, yeomanry, or"; in section nineteen, the words "the Constable of the Tower," and the words "in relation to the General or Local Militia".
38 & 39 Vict. c. 25.	The Public Stores Act, 1875 -	In section eight, the words "militia or", and in section thirteen, the word "militiaman."
39 & 40 Vict. c. 36.	The Customs Consolidation Act, 1876.	In section nine, the words "in the militia or".
41 & 42 Vict. c. 33.	The Dentists Act, 1878 -	In section thirty, the words "and from serving in the militia," and "in the militia or".
45 & 46 Vict. c. 48.	The Reserve Forces Act, 1882	Sections eight to ten; in section eleven, in subsection (1), the words "and the militia reserve respectively", the words "in the case of a man belonging to the army reserve", and the words "and in the case of a man belonging to the militia reserve fifty-six days", and subsection (3); in section twelve, the words "and the militia reserve or either of them" in subsection (1), and the words "forces or" in subsection (2); in section thirteen, the words "and militia reserve or either of them"; in section fourteen, the words "either of" in sub-

Reign and Chapter.	Title or Short Title.	Extent of Repeal. •
45 & 46 Vict. c. 48— <i>cont.</i>	The Reserve Forces Act, 1882 — <i>cont.</i>	section (1) ; in section fifteen, the words " or " militia " in both places where those words occur ; in section sixteen, the words " or militia " in both places where those words occur ; in section seventeen, the words " or militia " wherever those words occur ; in section eighteen, the words " or militia ", the words " or militia " reserve as the case " may be ", and the words " and (b) in " section one hundred, so far as relates to the militia reserve, of " one " whole period of " annual training " for " three months " in subsection (1) ; and the words " or " by a militia officer " and the words " or " militia " in subsection (2) ; in section nineteen, the words " or militia reserve " in both places where those words occur ; in section twenty, the words " and the " militia reserve or " either of them " in both places where those words occur in subsection (1), and the words " or " militia " in subsection (3) ; in section twenty-three, the words " or militia " and " and militia " ; in section twenty-four, the words " or " militia " wherever

Reign and Chapter.	Title or Short Title.	Extent of Repeal.
45 & 46 Vict. c. 48— <i>cont.</i>	The Reserve Forces Act, 1882 — <i>cont.</i>	those words occur; in section twenty-seven, the words “or militia”; in section twenty-eight, the words “and ‘militia ‘reserve force’”, the word “respectively”, and the words “and militia reserve”; in section twenty-nine, the words “or to the militia reserve force” wherever those words occur, and the words “or to the militia reserve” in subsection (3), and the words “either” and “or the militia reserve force” in subsection (4).
45 & 46 Vict. c. 49.	The Militia Act, 1882 - -	Sections three to twenty-eight; thirty-seven to forty-seven; subsections (1) to (4) of section forty-nine; so much of subsection (5) of section forty-nine as relates to the raising of a corps of miners; section fifty-one, and the Third Schedule.
47 & 48 Vict. c. 55.	The Pensions and Yeomanry Pay Act, 1884.	The whole Act, so far as it applies to the yeomanry.
51 & 52 Vict. c. 31.	The National Defence Act, 1888.	Section two.
51 & 52 Vict. c. 41.	The Local Government Act, 1888.	In subsection (1) of section fifty-nine, the word “militia” in both places where that word occurs.
53 & 54 Vict. c. 21.	The Inland Revenue Regulation Act, 1890.	In section eight, the words “or in the militia”.
55 & 56 Vict. c. 43.	The Military Lands Act, 1892	Section nineteen.

Reign and Chapter.	Title or Short Title.	Extent of Repeal. •
59 & 60 Vict. c. 25.	The Friendly Societies Act, 1896.	In subsection (1) of section forty-three, the words "in the militia or", and the words "yeomanry or".
61 & 62 Vict. c. 9.	The Reserve Forces and Militia Act, 1898.	Section two.
63 & 64 Vict. c. 42.	The Reserve Forces Act, 1900	Section two.
1 Edw. 7. c. 14.	The Militia and Yeomanry Act, 1901.	The whole Act.
2 Edw. 7. c. 39.	The Militia and Yeomanry Act, 1902.	The whole Act.
7 Edw. 7. c. 9.	The Territorial and Reserve Forces Act, 1907.	Section thirty-four.
8 Edw. 7. c. 48.	The Post Office Act, 1908 -	In section forty-three, the words "or in the militia".

CHAPTER 38.

An Act to increase the maximum licence duties for fishing for salmon and freshwater fish.

[17th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Increase of
maximum
licence
duties.

1.—(1) The maximum licence duties that may be imposed in relation to salmon or freshwater fish under the Salmon and Freshwater Fisheries Acts, 1861 to 1907, or any Provisional Order made thereunder, or under the Fisheries (Ireland) Acts, 1842 to 1909, shall be double the maximum licence duties which may be imposed at the passing of this Act.